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File No.: EXP202304256

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) on March 15, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***URL.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that he is a neighbor of the respondent and that the latter has a camera on the facade of his house which, due to its orientation and location, is capable of capturing images of the complainant's house, as well as of a private street in the Urbanization where both have their homes. He provides images of the camera's location, the affected areas, and plans of the camera's situation.

The documents provided are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party.

The first attempt to forward was made on April 17 and 18, 2023, resulting in "Absent." It was "Returned to Origin due to Excess (Not collected at the office)" on April 26, 2023, according to the delivery impossibility certification in the file.

The second attempt to forward was made on May 10 and 12, 2023, resulting in "Absent." It was "Returned to Origin due to Excess (Not collected at the office)" on May 22, 2023, according to the delivery impossibility certification in the file.

No response has been received to this forwarding letter.

THIRD: On May 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On August 31, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: According to the Official Postal Service, the Initiation Agreement associated with PS/00282/2023 was due to incorrect address on September 11, 2023.

Consulting the database of this agency, the Initiation Agreement associated with PS/00282/2023 is published in the B.O.E on September 15, 2023.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the violation of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore,

considering that the respondent has not made any allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

First. The installation of a device in the front area of the house is evidenced, with a sign from the installing company, this aspect being corroborated by the photographic evidence provided by the complainant.

Second. B.B.B., with associated NIF ***URL.1, is evidenced as the main responsible party.

Third. The presence of an image capture device oriented towards the garage area is evidenced, which is misaligned affecting the rights of third parties.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;”

Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Infringement

Article 5.1 c) of the GDPR states the following: Personal data shall be:

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“adequate, relevant and limited to what is necessary in relation to the purposes for which they are

processed ('data minimization')."

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of ensuring the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

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The placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is therefore not permitted.

Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

In the present case, from the documentation provided in the file, it can be inferred that the respondent has installed a surveillance camera on the facade of their house, which, due to its orientation and location, is likely capturing images of the claimant's residence and the private street of the Urbanization where both have their homes.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing

cannot be reasonably achieved by other means, considering Recital 39 of the GDPR.

“Personal data may only be processed if the purpose of the processing cannot be reasonably achieved by other means.”

2.- The images obtained may not be used for a subsequent purpose incompatible with that which motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

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5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section “Guides and tools”).

It is also of interest, in cases of processing low-risk data, the free tool Facilita (in the section “Guides and tools”), which, through specific questions, allows assessing the situation of the data controller regarding the processing of personal data they carry out, and where applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

In accordance with the “evidence” available in this sanctioning procedure, it is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR, which states the following:

“Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;

(...).”

For the purposes of the statute of limitations for infringements, the infringement mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

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Measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

In such a case, this Agency requires the data controller to, within the determined timeframe:

- Certify that they have proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images observed evidences that it does not capture
 - the residence of the complainant.
 - the private road of the Urbanization where both residences are located.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

VII

After analyzing the evidence provided by the complainant, it can be concluded that we are dealing with a device that affects the transit area of third parties without justified cause, with no evidence of impact on the complainant's residence.

Indeed, according to the doctrine of the Constitutional Court (STC 174/1985, 175/1985, 229/1988) and the jurisprudence of this Chamber (SSTS of March 23, 2015, cassation 4422/2012; of February 16, 2015, cassation appeals 940/2012 and 4182/2012; of November 6, 2013, cassation 2736/2010, and those cited therein from November 18, 1996, January 28, 1999, and March 6, 2000), the right to the presumption of innocence does not oppose that judicial conviction may be formed on the basis of circumstantial evidence.

We find a camera installed in the front area of the property oriented towards the parking area, which is not exclusive to the residence, whose angle of orientation is likely to affect that area according to the photographs provided.

The operability of the system is inferred from the presence of an informative sign from the installing company, which indicates that it is likely to process data of third parties passing through the parking area of the garage area.

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Thus, the "indications" provided lead to the conviction of the operability of the system and, therefore, to the commission of the described infringement, as the video surveillance device in question is poorly oriented.

Aside from the above, the respondent should have taken all necessary measures to demonstrate the legality of the installed system, facilitating its verification by the competent authorities in the matter, even if it concerns a second vacation home.

Therefore, in accordance with the applicable legislation and considering the criteria for the graduation of the sanctions whose existence has been established:

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Mr. B.B.B., with NIF ***URL.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, a fine of €300 (three hundred euros).

SECOND: TO ORDER Mr. B.B.B., with NIF ***URL.1, that pursuant to Article 58.2.d) of the GDPR, within 1 MONTH from the date this resolution becomes final and enforceable, to certify that they have complied with the following measure:

- Submission of a screenshot (date and time) of what is captured in their case with the main camera installed on the facade of their private property.

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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